The reading of the charges continued for the next two days. Van Niekerk said that he would prove to the court that the accused, with help from other countries, were plotting to overthrow the existing government by violence and impose a Communist government on South Africa. This was the charge of high treason. The state cited the Freedom Charter as both proof of our Communist intentions and evidence of our plot to overthrow the existing authorities. By the third day, much of the cage had been dismantled. Finally, on the fourth day, we were released on bail. Bail was another example of the sliding scale of apartheid: £250 for whites; £100 for Indians; and £25 for Africans and Coloureds. Even treason was not colorblind. Well-wishers from diverse walks of life came forward to guarantee bail for each of the accused, gestures of support that later became the foundation for the Treason Trial Defense Fund started by Bishop Reeves, Alan Paton, and Alex Hepple. The fund was ably administered during the trial by Mary Benson and then Freda Levson. We were released provided we reported once a week to the police, and were forbidden from attending public gatherings. Court was to resume in early January.

The following day I was at my office bright and early. Oliver and I had both been in prison, and our caseload had mounted in the meantime. While trying to work that morning, I was visited by an old friend named Jabavu, a professional interpreter whom I had not seen for several months. Before the arrests I had deliberately cut down my weight, in anticipation of prison, where one should be lean and able to survive on little. In jail, I had continued my exercises, and was pleased to be so trim. But Jabavu eyed me suspiciously. “Madiba,” he said, “why must you look so thin?” In African cultures, portliness is often associated with wealth and well-being. He burst out: “Man, you were scared of jail, that is all. You have disgraced us, we Xhosas!”